

THORPE, ROBERT DE.

CH. C. P. 1356. CHANCELLOR, 1371.

ROBERT DE THORPE was a native of Thorpe, near Norwich, and was educated at Cambridge, in which university he laid the foundation of the divinity schools, with the chapel over them, in 1356, and was afterwards master of Pembroke College. He was brought up to the law, and commenced his career as an advocate as early as 14 Edward III., 1340, attaining the rank of king's serjeant in 1345. Coke calls him "a man of singular judgment in the laws of this realm." He was appointed one of the justices to try felonies in the county of Oxford, in 1355, and was frequently employed as a justice of assize; but held no seat on the judicial bench at Westminster until he was selected to be the successor of Roger Hillary, as chief justice of the Common Pleas, on June 27, 1356, 30 Edward III. Nine years afterwards he had an extended grant of 40*l.* a year to support the dignity of knighthood which the king had conferred upon him; and he continued to preside in that court for nearly fifteen years. So high a character did he acquire, that when the Commons petitioned the king that none but laymen should be placed in the higher offices of the state, he was deemed the fittest man to supersede William of Wykeham, Bishop of Winchester, as chancellor; and the Great Seal was accordingly delivered to him on March 26, 1371, 45 Edward III.¹

He enjoyed this dignity little more than a year, his death occurring on June 29, 1372, at the Bishop of Salisbury's house, in Fleet Street.² By his will, which bears date on the same day, he leaves to his executors, Sir John Knyvet (who was appointed chancellor in his place), John de Harleston, John de Bretton, and Richard Treton (who afterwards

¹ Rot. Claus. 45 Edw. III., m. 35.² Ibid. 46 Edw. III., m. 20.

became master of Corpus Christi College), all his goods, together with his possessions in London, to be disposed of in such manner as they should judge would be most beneficial to his soul. Among the appropriations which they made, were grants to all the colleges then established at Cambridge for an annual commemoration of him.

He married Margaret, the daughter of William Deyncourt, but left no children; his brother, Sir William de Thorpe, being his heir.¹

THORPE, WILLIAM DE.

Just. C. P. 1342. *Just. K. B.* 1345. *Ch. K. B.* 1346. ? *B. E.* 1352.

To which of the families of Thorpe this William de Thorpe belonged, we have not been able precisely to ascertain. His name appears in the Year Books as an advocate as early as 7 Edward III. In 15 Edward III., 1341, he was made one of the king's serjeants; and is called the king's attorney in the following year. In that year, on April 23, 1342, he was raised to the bench. The words used are "*unus Justiciariorum ad placita in Banco.*"² Dugdale thereupon inserts him among the justices of the Common Pleas; but as he does not mention any fines levied before him, and introduces his name as a justice of the King's Bench in the nineteenth year, on the authority of the liberate Roll, without mentioning the date of his removal from the Common Pleas, it may be doubtful whether his first appointment was not to the King's Bench, especially as he became the chief of it on November 26, 1346, 20 Edward III. In that character he opened the parliaments of the two following years.³

Towards the end of 1350, charges were made against him

¹ Abbrev. Rot. Orig. ii. 337.; Cal. Inquia p. m., 322.; Masters' Hist. of Corp. Christi Coll., Cambridge, 28.; Dugdale's Chron. Series.

² Cal. Rot. Pat. 142.

³ Rot. Parl. ii. 164. 200.

of malversation in his office ; and the king issued his writ, on November 3, to the Earls of Arundel, Warwick, and Huntingdon, and to John de Grey of Retherfield, his steward, and Bartholomew de Burghersh, the chamberlain, to have him before them, and to do justice according to his demerits. They immediately proceeded on their commission ; when he confessed that he had received bribes from Richard de Salteby, of 10*l.* ; from Hildebrand Bereswerd, of 20*l.* ; from Gilbert Haliland, of 40*l.* ; from Thomas de Derby of St. Bartholomew, of 20*l.* ; and from Robert de Dalderby, of 10*l.* ; all of whom had been indicted before him at Lincoln ; and that he had therefore caused the writ of exigent against them to be stayed : whereupon he was committed prisoner to the Tower of London, and all his lands and goods were ordered to be seized into the king's hands, until the royal will and pleasure should be known.

With this legal and reasonable judgment, however, the king was not satisfied ; and accordingly issued another writ on November 19, in which, after reciting the oath taken by the justices, that none of them should accept any gift or reward from any one who had a plea or process before them, it was added, that when Sir William de Thorpe took that oath, the king, "*ore tenus*," imposed such punishment, that if he in any manner acted contrary thereto, he should be adjudged to be degraded and hanged. And then, after detailing the offence with which Thorpe was charged, and his confession, and dilating on the augmented fees assigned to the judges, and their three robes a year, the king states that he is greatly moved at the judgment pronounced by the justices assigned to try him, and that they have forborne to proceed on the sentence agreed to be imposed on him. He then commands the same parties immediately to pronounce the judgment agreed upon. This was accordingly done on November 19, 1350, 24 Edward III. ; and thereupon, on the same day, the

king, by writ of Privy Seal, signified that he "gave and forgave him his life," but ordered his body to be remitted to prison.¹ The record and process were afterwards laid before the parliament, which confirmed the judgment.² Coke says, that Sir William Thorpe was pardoned and restored to all his lands, "as by the record appeareth;"³ but the record, as published, only says that the execution of the judgment of hanging was pardoned to him, and that he was remitted to prison to await the king's favour. The remainder of the judgment, "that all his lands and goods should be forfeited to the king," is left unnoticed, and consequently unpardoned; and by entries on the records of that year⁴, it appears that the sheriffs of Lincoln and other counties were directed to take his lands, &c., into the king's hands, as convicted of certain crimes; and that four of his horses, "cum cellis frenis et garconibus," were seized by one of the sheriffs of London.

In the following year, however, he received the king's pardon, with the restoration of part of his lands; viz., the manor of Changton, in Sussex.⁵ He was not restored to his office of chief justice, which William de Shareshull certainly held during the next five years; but after an interval of eighteen months he was made second baron of the Exchequer, on May 24, 1352, 26 Edward III.; unless the William de Thorpe who then received that appointment was a different person. In the absence of any evidence to the contrary, there is good reason to believe that he was the same person; the more especially as we have instances, ten years before, of the king's reinstating judges against whom charges had been made; and as it was extremely improbable that a person, of whom no previous notice exists of his being

¹ N. Fœdera, iii. 203.² Rot. Parl. ii. 227.³ Third Inst. 145.⁴ Abbrev. Rot. Orig. ii. 211, 212.⁵ Cal. Rot. Pat. 160.

connected with the court, should be at once raised to the office of second baron, above the other occupants of that bench.

The whole proceeding is very extraordinary. The charge was for receiving bribes contrary to his oath; an offence which did not touch the delinquent's life by any law then existing; and so the commissioners appointed for his trial found, and therefore sentenced him only to imprisonment, and the forfeiture of his lands and goods. It is curious then to see the king endeavouring to enforce the capital penalty by his own personal declaration to Thorpe, when he took the oath, that he should be hanged if he infringed it; and afterwards, when these judges had complied with his mandate, immediately granting a pardon of the extreme part of the sentence; as if he were conscious that he was exceeding the law. His order, a few days subsequently, to lay the proceedings before parliament, is further evidence of his own doubts; and on the discussion in the following February, though the judgment was affirmed by the compliant Peers, it was with a reservation which sufficiently manifested their hesitation in recognising it; viz., that such a judgment should be only good against a delinquent who had the administration of the laws of England. The effect which the king desired was no doubt produced; and being satisfied with showing how far his power would extend in similar cases, it is not improbable that, after a decent term of purgation, he would be glad to avail himself of the services of a learned and useful man, not by restoring him to the high place he had before occupied, but by placing him in the second seat on another bench.

From a passage in the *Liber Assisarum* of 28 Edward III., p. 145., where Thorpe is said to have been "then made chief justice," it might be inferred that he was restored to his

former place; but attention to the context clearly proves that the expression merely means that he was made chief justice in the commission of assizes in Sussex, in the place of H. Green, who had been sent on some other service; as we should now say, the senior judge of assize.

Whether the baron of the Exchequer were the same or a different person, he was present among the judges in the parliament of 28 and 29 Edward III.¹, but not later.

Within a few years three William de Thorpes are mentioned; in Nottingham, Northampton, and Sussex²; but we cannot satisfactorily identify either with the judge.

TOUTHEBY, GILBERT DE.

JUST. ITIN. 1329.

See under the Reign of Edward II.

GILBERT DE TOUTHEBY was an advocate of considerable eminence. His name frequently appears in the Year Books among the counsel during the reign of Edward II., and in the first two years of Edward III.; often abbreviated "Toud." In 9 Edward II. he was employed in prosecuting and defending the king's suits, and had a grant, with three others, of 20*l.* for his expences therein, being at that time a king's serjeant-at-law. The next year he was summoned among the legal assistants to parliament; and so continued to be during the remainder of the reign. He is first mentioned in a judicial capacity, as one of the justices appointed in Lincolnshire in March, 1318, 11 Edward II., and most of his future commissions were in that county. It is evident that these occasional employments as a judge did not prevent his pursuing his profession as an advocate; for we not only find him engaged in cases as a serjeant-at-law in 14 Edward II., but on the accession of Edward III. his stipend for prosecuting and

¹ Rot. Parl. ii. 254. 267.

² N. Fœdera, iii. 221. 457. 464.

defending the king's causes was renewed to him. He certainly acted as a justice of assize under the latter king; but there is no mention of him later than the third year.

The custody of the manor of Foxton in Northamptonshire, and of those of Welle and Brumthorp in Lincolnshire, was committed to him by Edward II. during the minority of the heirs.¹

TRAVERS, JOHN.

JUST. C. P. 1329.

JOHN TRAVERS was of a Lancashire family, and was returned member for that county to the parliament of 35 Edward I. Under Edward II. he was frequently employed in it as commissioner of array, assessor of the aids, and custos of the lands forfeited by Thomas, Earl of Lancaster, and his adherents. In the second year of the reign of Edward III. we find him employed with the seneschal of Gascony and the constable of Bordeaux, to treat with certain German princes; and on March 2, 1329, in the next year, he was constituted a justice of the Common Pleas. Though the fines levied before him do not extend beyond the middle of 1331, he is mentioned in the Year Book of the reign as late as Michaelmas, 1333. About that period he received the appointment of constable of Bordeaux, and died within four years; for in 11 Edward III. certain houses in the parish of St. Andrew, Holborn, which belonged to him, and which came into the king's hands for debts due at the time of his death, were granted to two clerks of the Chancery at two marks a year, until they were redeemed by payment of the full account. These, Dugdale therefore thinks it probable, were used as an hospicium for the clerks of the Chancery; and that they formed the site of the Inn of Chancery now, by a

¹ Rot. Parl. i. 352. 370. 433., ii. 402.; Dugdale; Parl. Writs, ii. P. ii. 1518.; Abbrev. Rot. Orig. i. 218, 219., ii. 24.